

Court No. - 2

Case :- WRIT - C No. - 1217 of 2023

Petitioner :- Anoop Kumar Mishra

Respondent :- State Of U.P. Thru. Addl. Chief Secy.
Energy Civil Sectr. Govt. Of U.P. Lko. And Others

Counsel for Petitioner :- Sanjay Kumar

Counsel for Respondent :- C.S.C., Neera Yadav

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Manish Kumar,J.

(1) Heard the learned counsel for the petitioner and Smt. Neera Yadav, who appears for the Respondent nos. 2, 3 & 4 and the learned Standing counsel who appears on behalf of the State-respondent no.1.

(2) This petition has been filed by the petitioner for the following main prayers:-

"(i) Issue a writ, order or direction, in the nature of Mandamus commanding the opposite party nos.2 & 3 to re-instate the domestic connection of the petitioner.

(ii) Issue a writ, order or direction, in the nature of Mandamus commanding the opposite party nos.2 & 3 to consider and decide the Representation of the petitioner with adjusting the deposited bill and not take the electric will during the disconnection period, in the interest of justice."

(3) It appears from the pleadings on record that there is a billing dispute which could be solved by the Competent Authority under Paragraph-6.4 of the Electricity Supply Code.

(4) This petition is **finally disposed of** with a direction to the petitioner to approach the Competent Authority/ Executive Engineer of the Division concerned within a period of **two weeks from today** with his application and undertaking, if any, offering to deposit the amount as has fallen due. The Executive Engineer, concerned shall look into the matter of the petitioner sympathetically and pass appropriate reasoned and speaking orders, in accordance with law, within a period of **six weeks thereafter**.

Order Date :- 15.2.2023

N.PAL